

Model California State Forms for Pen Register/Trap and Trace Orders

The following model forms were modified for state court from Appendix D of the Federal Search and Seize Manual, Searching and Seizing Computers and Obtaining Electronic Evidence in Criminal Investigations, which is published by the Computer Crime and Intellectual Property Section, Criminal Division, U.S. Department of Justice.

This document contains three separate model forms for pen register/trap and trace orders on the Internet: an IP trap and trace for a web-based email account; a pen register/trap and trace order to collect addresses on email sent to and from a target account; and an IP pen register/trap and trace order for use in investigating a computer network intrusion.

Model Form for Internet Protocol Trap and Trace on a Web-based Email Account

The sample application and order below are specifically designed for use to locate and/or identify the person using a specified Web-based email account on a service such as Yahoo or Hotmail. The order authorizes the collection of the numeric network address(es) — i.e., the Internet Protocol (IP) address(es) — from which the user accesses the account. That information, in turn, can be used to trace the user to the other Internet site (such as an Internet Service Provider (ISP), a cybercafé, or a public library terminal) from which he or she accessed the webmail service. It is primarily useful in cases (such as fugitive investigations) where the objective is to identify and locate the user.

Note that this order *is not* designed to collect the email addresses to which the user sends email messages from the Web-based account, nor to collect the addresses from which the account owner receives email. That type of order — which might be used, for example, to discover the co-conspirators of a criminal known to use email in his/her conspiratorial activities — would not ask for (or even discuss) IP addresses, and would normally require discussion of the pen register provisions of the statute as well as trap and trace. (For a sample application and order including such language, see the second model form in this document. Note that using the latter will likely slow the process of having the provider implement the order, so it should be used only where the additional information — i.e., To: and From: on email traffic sent from/to the target account — is needed.)

SUPERIOR COURT OF CALIFORNIA

COUNTY OF _____

)

IN THE MATTER OF THE APPLICATION)

OF THE UNITED STATES OF AMERICA) No.

FOR AN ORDER AUTHORIZING THE)

INSTALLATION AND USE OF A TRAP)

AND TRACE DEVICE)

) **FILED UNDER SEAL**

APPLICATION

John Doe, a Special Agent with the California Department of Justice, hereby applies to the Court pursuant to 18 U.S.C. § 3122 for an order authorizing the installation and use of a trap and trace device. In support of this application, he/she states the following:

[Applicant is a "State investigative or law enforcement officer" and therefore, pursuant to Title 18, United States Code, Section 3122(a), may apply for an order authorizing the installation and use of trap and trace devices.

2. Applicant certifies that the information likely to be obtained is relevant to an ongoing criminal investigation being conducted by [investigative agency], in connection with possible violations of Title 18, United States Code, sections _____.

3. [As a result of information obtained through previous orders issued by this Court,] investigators believe that the offense under investigation has been and continues to be

accomplished through the user account _____ at _____, an electronic communication service provider located at _____. The listed subscriber for this account is [name], [address], [telephone]. _____, and others yet unknown, are the subjects of the above investigation.

4. A trap and trace device is defined in Title 18, United States Code, Section 3127(4) as “a device or process which captures the incoming electronic or other impulses which identify the originating number or other dialing, routing, addressing, and signaling information reasonably likely to identify the source of a wire or electronic communication, provided, however, that such information shall not include the contents of any communication.” This definition reflects the significant amendments made by the USA PATRIOT Act of 2001 § 216, Pub. L. No. 107-56, 115 Stat. 272, 288-90 (2001).

5. [webmail provider] is a provider of free electronic mail communication services. [provider’s] users access its services by means of the Internet’s World Wide Web. Using a standard web browser program (such as Netscape or Internet Explorer), [provider’s] users may compose, send, and receive electronic mail through the computers in [provider’s] network.

6. Whenever an Internet user visits [provider’s] web site (or any other web site on the Internet), that user’s computer identifies itself to the web site by means of its Internet Protocol address. An Internet Protocol (“IP”) address is a unique numeric identifier assigned to every computer attached to the Internet. An Internet service provider (ISP) normally controls a range of several hundred (or even thousands of) IP addresses, which it assigns to its customers for their use.

7. IP numbers for individual user accounts (such as are sold by ISPs to the general public) are usually assigned “dynamically”: each time the user dials into the ISP to connect to the Internet, the customer’s machine is assigned one of the available IP addresses controlled by the ISP. The customer’s computer retains that IP address for the duration of that session (i.e., until the user disconnects), and the IP address cannot be assigned to another user during that period. Once the user disconnects, however, that IP address becomes available to other customers who dial in thereafter. Thus, an individual customer’s IP address normally differs each time he dials into the ISP. By contrast, an ISP’s business customer will commonly have a permanent, 24-hour Internet connection to which a “static” (i.e., fixed) IP address is assigned.

8. These source IP addresses are, in the computer network context, conceptually identical to the origination phone numbers captured by traditional trap and trace devices installed on telephone lines. Just as traditional telephonic trap and trace devices may be used to determine the source of a telephone call (and thus the identity of the caller), it is feasible to use a combination of hardware and software to ascertain the source addresses of electronic connections to a World Wide Web computer, and thereby to identify and locate the originator of the connection.

9. Accordingly, for the above reasons, the applicant requests that the Court enter an order authorizing the installation and use of a trap and trace device to identify the source IP address (along with the date and time) of all logins to the subscriber account [user account] at [provider]. The applicant is not requesting, and does not seek to obtain, the contents of any communications.

10. The applicant requests that the foregoing installation and use be authorized for a period of 60 days. *[Maximum period of 10 days if order is obtained via a search warrant]*

11. The applicant further requests that the Order direct that, upon service of the order upon it, [provider] furnish information, facilities, and technical assistance necessary to accomplish the installation of the trap and trace device, including installation and operation of the device unobtrusively and with a minimum of disruption of normal service. [provider] shall be compensated by [investigating agency] for reasonable expenses incurred in providing such facilities and assistance in furtherance of the Order.

12. The applicant further requests that the Order direct that the information collected and recorded pursuant to the Order shall be furnished to [investigating agency] at reasonable intervals during regular business hours for the duration of the Order.

13. **[If state search warrant is used]** The applicant further requests that the Order direct that the tracing operation shall encompass tracing the communications to their true source, if possible, without geographic limit. *[State search warrant, pursuant to Penal Code section 1524.2, allows application of the order outside of the State of California]*.

14. The applicant further requests that pursuant to Title 18, United States Code, Section 3123(d)(2) the Court's Order direct [provider], and any other person or entity providing wire or electronic communication service in the United States whose assistance is used to facilitate the execution of this Order (pursuant to 18 U.S.C. § 3123(a)), and their agents and employees not to disclose to the listed subscriber, or any other person, the existence of this Order, the trap and trace device, or this investigation unless or until otherwise ordered by the court and further, pursuant to Title 18, United States Code, Section 3123(d)(1), that this application and Order be SEALED.

The foregoing is based on information provided to me in my official capacity by agents of [investigative agency].

I declare under penalty of perjury that the foregoing is true and correct.

Dated this ____ day of _____, 2002.

Special Agent John Doe

SUPERIOR COURT OF CALIFORNIA

COUNTY OF _____

IN THE MATTER OF THE APPLICATION) No.

OF THE UNITED STATES OF AMERICA)

FOR AN ORDER AUTHORIZING THE)

INSTALLATION AND USE OF A TRAP)

AND TRACE DEVICE)

) **FILED UNDER SEAL**

ORDER

This matter has come before the Court pursuant to an application under Title 18, United States Code, Section 3122 by Special Agent John Doe, a state investigative or law enforcement officer, which application requests an Order under Title 18, United States Code Section 3123 authorizing the installation and use of a trap and trace device to determine the source Internet Protocol address (along with date and time) of login connections directed to the user account _____ at [provider name], which is located at [address of provider]. The account is registered to [name/address].

The Court finds that the applicant has certified that the information likely to be obtained by such installation and use is relevant to an ongoing criminal investigation into possible violations of Title 18, United States Code, Section _____, by _____ [and others yet unknown].

IT IS THEREFORE ORDERED, pursuant to Title 18, United States Code, Section 3123, that a trap and trace device be installed and used to determine the source Internet Protocol

address (along with date and time) of login connections directed to the user account [user account], but not the contents of such communications;

IT IS FURTHER ORDERED, pursuant to Title 18, United States Code, Section 3123(c) (1), that the use and installation of the foregoing occur for a period not to exceed 60 days; [*Maximum period of 10 days if order is obtained via a search warrant*]

IT IS FURTHER ORDERED, pursuant to Title 18, United States Code, Section 3123(b) (2) and in accordance with the provisions of section 3124(b), that [provider], upon service of the order upon it, shall furnish information, facilities, and technical assistance necessary to accomplish the installation of the trap and trace device, including installation and operation of the device unobtrusively and with a minimum of disruption of normal service;

IT IS FURTHER ORDERED, that the results of the trap and trace device shall be furnished to [agency] at reasonable intervals during regular business hours for the duration of the Order;

[If state search warrant is used] IT IS FURTHER ORDERED, that the tracing operation shall encompass tracing the communications to their true source, if possible, without geographic limit; [*State search warrant, pursuant to Penal Code section 1524.2, allows application of the order outside of the State of California*]

IT IS FURTHER ORDERED that [agency] compensate [provider] for expenses reasonably incurred in complying with this Order; and

IT IS FURTHER ORDERED, pursuant to Title 18, United States Code, Section 3123(d), that [**provider**], and any other person or entity providing wire or electronic communication service in the United States whose assistance is used to facilitate the execution of this Order (pursuant to 18 U.S.C. § 3123(a)), and their agents and employees shall not disclose to the listed subscriber, or any other person, the existence of this Order, the trap and trace device, or this investigation unless or until otherwise ordered by the court and further, pursuant to Title 18, United States Code, Section 3123(d)(1), that this application and Order be SEALED.

Dated this day of _____, 2002.

SUPERIOR COURT JUDGE

**Model Form for Pen Register/Trap and Trace Order to
Collect Addresses on Email Sent to/from the Target Account**

The sample application and order below are specifically to collect the email addresses to which the user sends email messages from an account, and to collect the addresses from which the account owner receives email.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF _____

)

IN THE MATTER OF THE APPLICATION)

OF THE UNITED STATES OF AMERICA) No.

FOR AN ORDER AUTHORIZING THE)

INSTALLATION AND USE OF PEN)

REGISTER AND TRAP AND TRACE DEVICES)

) **FILED UNDER SEAL**

APPLICATION

John Doe, a Special Agent with the California Department of Justice, hereby applies to the Court pursuant to 18 U.S.C. § 3122 for an order authorizing the installation and use of pen register and trap and trace devices. In support of this application, he/she states the following:

1. Applicant is a “State investigative or law enforcement officer” and therefore, pursuant to Title 18, United States Code, Section 3122(a), may apply for an order authorizing the installation and use of pen register and trap and trace devices.

2. Applicant certifies that the information likely to be obtained is relevant to an ongoing criminal investigation being conducted by [investigative agency], in connection with possible violations of Title 18, United States Code, sections _____.

3. [As a result of information obtained through previous orders issued by this Court,] investigators believe that the offense under investigation has been and continues to be accomplished through the user account _____ at _____, an electronic communication service provider located at _____. The listed subscriber for this account is [name], [address], [telephone], _____, and others yet unknown, are the subjects of the above investigation.

4. A pen register, as defined in Title 18, United States Code, Section 3127(3), is “a device or process which records or decodes dialing, routing, addressing, or signaling information transmitted by an instrument or facility from which a wire or electronic communication is transmitted.” A trap and trace device is defined in Title 18, United States Code, Section 3127(4) as “a device or process which captures the incoming electronic or other impulses which identify the originating number or other dialing, routing, addressing, and signaling information reasonably likely to identify the source of a wire or electronic communication, provided, however, that such information shall not include the contents of any communication.” These definitions reflect the significant amendments made by the USA PATRIOT Act of 2001 § 216, Pub. L. No. 107-56, 115 Stat. 272, 288-90 (2001).

5. [provider] is a provider of electronic mail communication services.

6. It is possible to identify the other addresses with which a user of [provider's] service is communicating via email. The “headers” on an electronic mail message contain, among other information, the network addresses of the source and destination(s) of the communication. Internet electronic mail addresses adhere to the standardized format “username@network”, where username identifies a specific user mailbox associated with network, the system on which the mailbox is located. Standard headers denoting the source and destination addresses of an electronic mail message are “To:” and “Cc:” (destinations), and “From:” (source). For example, a message containing the headers

From: jane@doe.com

To: richard@roe.com

Cc: pat@address.com

indicates that user “jane” (on the doe.com system) is the sender, and that users “richard” (with a mailbox on roe.com) and “pat” (at address.com) are the intended recipients. Multiple destination addresses may be specified in the To: and Cc: fields.

7. These source and destination addresses, analogous to the origination and destination phone numbers captured by traditional trap and trace devices and pen registers installed on telephone lines, constitute “routing” and “addressing” information within the meaning

of the statute, as amended by the USA PATRIOT Act in October 2001. As with traditional telephonic pen registers and trap and trace devices, it is feasible to use a combination of hardware and software to ascertain the source and destination addresses associated with Internet electronic mail.

8. Accordingly, for the above reasons, the applicant requests that the Court:

A. Enter an order authorizing the installation and use of a trap and trace device to identify the source address of electronic mail communications directed to the subscriber account [user account] at [provider].

B. Enter an order authorizing the installation and use of a pen register to determine the destination addresses of electronic mail communications originating from [user account], along with the date and time of such communications.

The applicant is not requesting, and does not seek to obtain, the contents of any communications.

9. The applicant requests that the foregoing installation and use be authorized for a period of 60 days. *[Maximum period of 10 days if order is obtained via a search warrant]*

10. The applicant further requests that the Order direct that, upon service of the order upon it, [provider] furnish information, facilities, and technical assistance necessary to accomplish the installation of the pen register and trap and trace device, including installation and operation of the device unobtrusively and with a minimum of disruption of normal service. [provider] shall be compensated by [investigating agency] for reasonable expenses incurred in providing such facilities and assistance in furtherance of the Order.

11. The applicant further requests that the Order direct that the information collected and recorded pursuant to the Order shall be furnished to [investigating agency] at reasonable intervals during regular business hours for the duration of the Order.

12. **[If state search warrant is used]** The applicant further requests that the Order direct that the tracing operation shall encompass tracing the communications to their true source, if possible, without geographic limit. *[State search warrant, pursuant to Penal Code section 1524.2, allows application of the order outside of the State of California.]*

13. The applicant further requests that pursuant to Title 18, United States Code, Section 3123(d)(2) the Court's Order direct [provider], and any other person or entity providing wire or electronic communication service in the United States whose assistance is used to facilitate the execution of this Order, and their agents and employees not to disclose to the listed subscriber, or any other person, the existence of this Order, the pen register and trap and trace devices, or this investigation unless or until otherwise ordered by the court and further, pursuant to Title 18, United States Code, Section 3123(d)(1), that this application and Order be SEALED.

The foregoing is based on information provided to me in my official capacity by agents of [investigative agency].

I declare under penalty of perjury that the foregoing is true and correct.

Dated this ____ day of _____, 2002.

Special Agent John Doe

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SACRAMENTO

IN THE MATTER OF THE APPLICATION) No.

OF THE UNITED STATES OF AMERICA)

FOR AN ORDER AUTHORIZING THE)

INSTALLATION AND USE OF PEN)

REGISTER AND TRAP AND TRACE DEVICES)

) **FILED UNDER SEAL**

ORDER

This matter has come before the Court pursuant to an application under Title 18, United States Code, Section 3122 by Special Agent John Doe, a state investigative or law enforcement officer, which application requests an Order under Title 18, United States Code Section 3123 authorizing the installation and use of pen register and trap and trace devices to collect the source addresses of electronic mail communications directed to, and destination addresses of electronic mail communications originating from, user account _____ at [provider name]. [provider name] is located at [address of provider]. The account is registered to [name/address].

The Court finds that the applicant has certified that the information likely to be obtained by such installation and use is relevant to an ongoing criminal investigation into possible violations of Title 18, United States Code, Section _____, by _____ [and others yet unknown].

IT IS THEREFORE ORDERED, pursuant to Title 18, United States Code, Section 3123, that pen register and trap and trace devices be installed and used to identify the source address of electronic mail communications directed to, and the destination addresses of

electronic mail communications originating from, [user account], along with the date and time of such communications, but not the contents of such communications;

IT IS FURTHER ORDERED, pursuant to Title 18, United States Code, Section 3123(c) (1), that the use and installation of the foregoing occur for a period not to exceed 60 days; *[Maximum period of 10 days if order is obtained via a search warrant]*

IT IS FURTHER ORDERED, pursuant to Title 18, United States Code, Section 3123(b) (2) and in accordance with the provisions of section 3124(b), that [provider], upon service of the order upon it, shall furnish information, facilities, and technical assistance necessary to accomplish the installation of the pen register and trap and trace devices, including installation and operation of the devices unobtrusively and with a minimum of disruption of normal service;

IT IS FURTHER ORDERED, that the results of the pen register and trap and trace devices shall be furnished to [agency] at reasonable intervals during regular business hours for the duration of the Order;

[If state search warrant is used] IT IS FURTHER ORDERED, that the tracing operation shall encompass tracing the communications to their true source, if possible, without geographic limit; *[State search warrant, pursuant to Penal Code section 1524.2, allows application of the order outside of the State of California.]*

IT IS FURTHER ORDERED that [agency] compensate [provider] for expenses reasonably incurred in complying with this Order; and

IT IS FURTHER ORDERED, pursuant to Title 18, United States Code, Section 3123(d), that [provider name], and any other person or entity providing wire or electronic communication service in the United States whose assistance is used to facilitate the execution of this Order, and their agents and employees shall not disclose to the listed subscriber, or any other person, the existence of this Order, the pen register and trap and trace devices, or this investigation unless or until otherwise ordered by the court and further, pursuant to Title 18, United States Code, Section 3123(d)(1), that this application and Order be SEALED.

Dated this _____ day of _____, 2002.

SUPERIOR COURT JUDGE

Model Form for IP Pen Register/Trap and Trace on a Computer Network Intruder

The sample application and order below are designed for use in investigating a computer network intrusion. The order authorizes the collection of source and destination information (*e.g.*, source and destination IP addresses and ports) for network transmissions to and from a specified network computer. Because the order does not authorize the collection of communications contents, it is not a substitute for an order issued under Title III, 18 U.S.C. § 2510 *et seq.* The order is primarily useful in situations where the objective is to identify and locate the intruder, or to map the intruder's patterns of behavior (such as the identities of other network hosts used or victimized by the intruder).

SUPERIOR COURT OF CALIFORNIA COUNTY OF _____

IN THE MATTER OF THE APPLICATION)
OF THE UNITED STATES OF AMERICA)
FOR AN ORDER AUTHORIZING THE) MISC. NO.
INSTALLATION AND USE OF A PEN)
REGISTER AND TRAP & TRACE DEVICE)

APPLICATION

John Doe, a Special Agent with the California Department of Justice, applies for an order authorizing the installation and use of pen register and trap and trace devices on an Internet-connected computer operated by [**victim institution name and address**]. In support of said application, the applicant states:

1. The applicant is a "State investigative or law enforcement officer" and therefore, pursuant to Title 18, United States Code, Section 3122(a), may apply for an order authorizing the installation and use of trap and trace devices and pen registers.
2. The applicant certifies that the California Department of Justice is conducting a criminal investigation of unknown individuals in connection with possible violations of

Penal Code section 502(c)(1) (fraud and related activity involving computers, *i.e.*, “computer hacking”) and related statutes; that it is believed that the subjects of the investigation are using a computer system operated by the **[victim]**, in furtherance of the described offenses; and that the information likely to be obtained from the pen register and trap and trace devices is relevant to the ongoing criminal investigation. Specifically, the information derived from such an order would provide evidence of the source of the attacks **[and the identity of other systems being used to coordinate the attacks]**.

3. A pen register, as defined in Title 18, United States Code, Section 3127(3), is “a device or process which records or decodes dialing, routing, addressing, or signaling information transmitted by an instrument or facility from which a wire or electronic communication is transmitted.” A trap and trace device is defined in Title 18, United States Code, Section 3127(4) as “a device or process which captures the incoming electronic or other impulses which identify the originating number or other dialing, routing, addressing, and signaling information reasonably likely to identify the source of a wire or electronic communication, provided, however, that such information shall not include the contents of any communication.” These definitions reflect the significant amendments made by the USA PATRIOT Act of 2001 § 216, Pub. L. No. 107-56, 115 Stat. 272, 288-90 (2001).

4. Data packets transmitted over the Internet — the mechanism for all Internet communications — contain addressing information closely analogous to origination phone numbers captured by traditional trap and trace devices installed on telephone lines and destination phone numbers captured by traditional pen registers. Devices to determine the source and destinations of such communications can be implemented through a combination of hardware and software.

5. To date, the investigation has identified a computer at **[victim]** which is being used to commit or assist in the commission of the offenses under investigation, a machine identified by the Internet Protocol address¹ _____. Based upon the configuration of the system, any incoming or outgoing port may be used for communication, including redirected communications, involved in the offenses under investigation.²

6. The investigation to date indicates that **[brief recitation of relevant facts]**.

[7. It is believed that TCP ports 25, 80, 110, and 143 (relating to email and Worldwide Web traffic³) are not being used in the commission of these crimes and that traffic on these ports can be excluded from the scope of the order.]

8. Accordingly, for the above reasons, the applicant requests that the Court enter an order authorizing the use of pen register and trap and trace devices to trace the source and destination of all electronic communications *directed to* or *originating from* any port (except ports 25, 80, 110, and 143) of the **[victim]** computer identified by the network address _____, and to record the date, time, and duration of the transmissions of these communications for a period of 60 days. [*Maximum period of 10 days if order is obtained via a search warrant.*] The applicant is not requesting, and does not seek to

obtain, the contents of such electronic communications (as defined at 18 U.S.C. § 2510(8)).

9. The applicant further requests that the Order direct that **[victim]**, and any other electronic communications provider whose assistance may (pursuant to 18 U.S.C. § 3123(a)) facilitate the execution of the order, upon service of the order upon them, furnish information, facilities, and technical assistance necessary to accomplish the installation of the trap and trace devices and pen registers, including installation and operation of the devices unobtrusively and with a minimum of disruption of normal service. These entities shall be compensated by the California Department of Justice for reasonable expenses incurred in providing such facilities and assistance in furtherance of the Order.

10. The applicant further requests that the Order direct that the information collected and recorded pursuant to the Order be furnished to applicant at reasonable intervals during regular business hours for the duration of the Order.

11. **[If state search warrant is used]** The applicant further requests that the Order direct that the tracing operation shall encompass tracing the communications to their true source, if possible, without geographic limit. *[State search warrant, pursuant to Penal Code section 1524.2, allows application of the order outside of the State of California.]*

12. Further, applicant respectfully requests the Court order that, pursuant to 18 U.S.C. § 3123(d)(2), **[victim]** and any other person or entity providing wire or electronic communication service in the United States whose assistance is used to facilitate the execution of this Order, and their agents and employees, make no disclosure of the existence of this Application and Order, except as necessary to effectuate it, unless and until authorized by this Court and that, pursuant to 18 U.S.C. § 3123(d)(1), the Clerk of Court seal the Order (and this Application) until further order of this Court. Providing prior notice to the subjects of the investigation could seriously jeopardize the ongoing investigation, as such a disclosure would give the subjects of the investigation an opportunity to destroy evidence, change patterns of behavior to evade detection, notify confederates, or flee from prosecution.

The foregoing is based on information provided to me in my official capacity by agents of the Department of Justice.

Executed on _____, 2002.

Special Agent John Doe

SUPERIOR COURT OF CALIFORNIA
COUNTY OF _____

IN THE MATTER OF THE APPLICATION)
OF THE UNITED STATES OF AMERICA)
FOR AN ORDER AUTHORIZING THE) MISC. NO.
INSTALLATION AND USE OF A PEN)
REGISTER AND TRAP & TRACE DEVICE)

ORDER

This matter comes before the Court pursuant to an application under Title 18, United States Code, Section 3122 by Special Agent John Doe, a state investigative or law enforcement officer, which application requests an order under Title 18, United States Code, Section 3123 authorizing the installation and use of a pen register and trap and trace devices on computers operated by [victim], which computers are located at _____. The Court finds that the applicant has certified that the information likely to be obtained by such installation and use is relevant to an ongoing criminal investigation into possible violations of 18 U.S.C. § 1030 by individuals currently unknown.

IT IS ORDERED, pursuant to Title 18, United States Code, Section 3123, that agents of the California Department of Justice may install trap and trace devices to trace the source and destination of all electronic communications *directed to or originating from* any port (except ports 25, 80, 110, or 143) of the computer at [victim] computer network with the network address _____ and record the date, time, and duration (but not the contents) of these communications for a period of 60 days. [*Maximum period of 10 days if order is obtained via a search warrant.*]

IT IS FURTHER ORDERED, pursuant to Title 18, United States Code, Section 3123(b) (2), that [victim] and any other electronic communications provider whose assistance may (pursuant to 18 U.S.C. § 3123(a)) facilitate the execution of the order, upon service of this Order upon them, shall furnish information, facilities, and technical assistance necessary to accomplish the installation of the trap and trace devices and pen registers including installation and operation of the devices unobtrusively and with a minimum of disruption of normal service;

IT IS FURTHER ORDERED, that the California Department of Justice compensate [victim] and any other person or entity providing wire or electronic communication service in the United States whose assistance is used to facilitate the execution of this Order for expenses reasonably incurred in complying with this Order;

IT IS FURTHER ORDERED, that the results of the trap and trace devices and the pen registers shall be furnished to the California Department of Justice at reasonable intervals during regular business hours for the duration of the Order; and

[If state search warrant is used] IT IS FURTHER ORDERED, that the tracing operation shall encompass tracing the communications to their true source, if possible, without geographic limit; [*State search warrant, pursuant to Penal Code section 1524.2, allows application of the order outside of the State of California*]

IT IS FURTHER ORDERED, pursuant to Title 18, United States Code, Section 3123(b), that this Order and the Application be sealed until otherwise ordered by the Court, and that [victim] and any other person or entity providing wire or electronic communication service in the United States whose assistance is used to facilitate the execution of this Order shall not disclose the existence of the trap and trace devices and pen registers, or the existence of the investigation to any person, except as necessary to effectuate this Order, unless or until otherwise ordered by the Court.

ENTERED: _____, 2002

FOR THE COURT:

SUPERIOR COURT JUDGE

1. An Internet Protocol (IP) address is a unique numerical address identifying each computer on the Internet. IP addresses are conventionally written in the dot-punctuated form *num1.num2.num3.num4* (e.g., 192.168.3.47).

2. A “port” in the Transmission Control Protocol used over the Internet is a numeric identifier for a particular type of service being offered by a machine. For example, port 80 is typically reserved for World Wide Web traffic, so that a computer that wishes to retrieve information from a web server would typically connect to port 80. Often, however, hackers run programs that listen at a particular port, but do not provide the typically expected protocol at that port. These are often used as “back doors” into computer systems.

3. TCP port 25 is specifically reserved for the Simple Mail Transfer Protocol (commonly referred to as SMTP), port 80 is reserved for Hypertext Transfer Protocol (HTTP, or web traffic), port 110 is reserved for the Post Office Protocol version 3 (POP3), and port 143 is reserved for the Internet Mail Access Protocol (IMAP). *[Modify list of excluded ports as needed.]*